

credibility purposes.

Importantly, what Plaintiff entirely failed to do was even answer this Interrogatory in part. A good faith response would have provided only the admissible scope of felony convictions—if any—under Evidence Code sections 788 and 352 (as interpreted by case law) and been explicit as to the limitations. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 (“A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.”).) There would even have been the opportunity to keep this information between only the parties until trial.

Plaintiff’s wholesale failure to respond to this inquiry was not in good faith. His various objections are inapposite. Defendant’s request for sanctions in the amount of \$1,680.00 is appropriate here.

Defendant’s Motion to Compel is therefore **granted**. Plaintiff must amend his response to include felony convictions as requested within 15 days of this order. He must further pay \$1,680.00 to counsel for Defendant within 30 days of this order.

22. 9:01 AM CASE NUMBER: C25-02337

CASE NAME: JOSE BARRERA GALEANA VS. BRANT ADERMAN

***HEARING ON MOTION FOR DISCOVERY TO COMPEL PLAINTIFF JOSE BARRERA GALEANA'S FURTHER RESPONSE TO REQUESTS FOR PRODUCTION, SET ONE, OR, IN THE ALTERNATIVE, REQUEST TO COMPEL PLAINTIFF TO SIGN AN AUTHORIZATION FORM TO ENABLE DEFENDANT TO OBTAIN THE REQUEST RECORDS INDEPENDENTLY**

FILED BY: ADERMAN, BRANT

TENTATIVE RULING:

Before the Court is Defendant Brant Aderman’s Motion to Compel Plaintiff Jose Barrera Galeana’s Further Responses to Requests for Production of Documents, Set One. This case involves a motor vehicle accident.

The sole issue in this Motion is a single request for production of documents. Initially Defendant sought for Plaintiff, in the alternative, to provide authorization for Defendant to acquire the documents by subpoena. In reply, Defendant appears to have abandoned that request.

Defendant seeks documents relating to phone calls or text messages made or received on Plaintiff’s cell phone from one hour before and one hour after the accident. Plaintiff responded: “Pursuant to Civ. Proc. Code § 2031.230 this Responding Party is unable to comply with the particular demand for inspection, copying, testing, or sampling. This Responding Party affirms that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. The inability to comply is due to the particular item or category has never existed, or is not or has never been, in the possession, custody, or control of this Responding Party. Investigation and discovery are continuing with regards to documents relevant to this request.”

Defendant complains that Plaintiff has failed to comply with the request for 3 reasons: (1) a response stating “has never existed, or is not or has never been” in his possession is selecting too many of the options available under Code of Civil Procedure section 2031.230; (2) he fails to give the name and address of a person or organization who may have this information; and (3) other information suggests that the lack of responsive documents is untruthful.

The first argument is unavailing. If Plaintiff searched his phone and found no records, he would be unable to know whether there were none or whether they never existed. Both reasons are possible. There is nothing inherently non-compliant about this response.

The second argument is accurate, albeit relatively pointless. While Plaintiff did fail to identify AT&T by name and address, Defendant was clearly aware of this information when he issued a now-withdrawn subpoena. If he truly desires this information to be supplemented, Plaintiff must do so.

The third argument is additionally not persuasive. Although it appears that Plaintiff was in contact with an officer after the incident, as the Court understands the chain of events, there is no reason to believe that he is necessarily lying that he has no record of such communications *within one hour* of the car accident.

Both parties’ requests for sanctions are denied.